

Exhibit S

1 UNITED STATES DISTRICT COURT
2 FOR THE NORTHERN DISTRICT OF OHIO
3 WESTERN DIVISION

4 * * *

5
6 AMERICAN COLLOID COMPANY,

7 Plaintiff,

8
9 vs.

NO. 3:22-cv-01342

10 FIRE STAR ENERGY RESOURCES, LLC,

11 Defendant.

12 * * *

13
14
15 Videotaped Remote 30(b)(6)
16 Deposition of SCOTT WARREN, a witness herein,
17 called by the plaintiff for examination
18 pursuant to the Federal Rules of Civil
19 Procedure, taken before me, Patti Stachler,
20 RMR, CRR, a Notary Public within and for the
21 Commonwealth of Kentucky, at 300 Liperote Way,
22 London, Kentucky, on August 29, 2023, at
23 10:04 a.m.

24 * * *

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25

I N D E X

SCOTT WARREN	PAGE
Examination by Ms. Rathke	4
Examination by Mr. Hunter	23

INDEX OF EXHIBITS

EXHIBIT	DESCRIPTION	PAGE
Exhibit 1	Subpoena	8
Exhibit 2	Incoming/Direct Coal Totals by (Mine Co./Vendor)/Date	18

* * *

1 APPEARANCES: (All appeared remotely.)

2
3 On behalf of the Plaintiff:

4 Squire, Patton, Boggs, LLP

5 By: Sarah Kathryn Rathke, Esq.

Lauryn B. Durham, Esq.

6 4900 Key Tower

127 Public Square

7 Cleveland, Ohio 44114

216.479.8533

8 sarah.rathke@squirepb.com

lauryn.durham@squirepb.com

9
10 On behalf of the Defendant:

11 Frost Brown Todd

12 By: Barry D. Hunter, Esq.

13 250 West Main Street

Suite 2800

14 Lexington, Kentucky 40507

859.231.0000

15 bhunter@fbtlaw.com

16
17 Also present:

18 Steve Troncone, Videographer

Clint Thomas, Concierge

19
20 * * *

1 THE VIDEOGRAPHER: We are now on
2 the video record. Today is August 29th, 2023.
3 The time is approximately 10:04 a.m. Eastern
4 Time. We are here in the matter of the
5 American Colloid Company versus Fire Star
6 Energy Resources, LLC. We are here to take the
7 30(b)(6) deposition of Scott Warren.

8 Will counsel please identify
9 themselves for the record?

10 MS. RATHKE: Sure. Sarah Rathke
11 for American Colloid Company, ACC. And also
12 with me is Lauryn Durham.

13 MR. HUNTER: Barry Hunter for Fire
14 Star Energy.

15 SCOTT WARREN
16 a witness herein, having been first remotely duly
17 sworn as hereinafter certified, was examined and
18 deposed as follows:

19 EXAMINATION

20 BY MS. RATHKE:

21 Q. All right. Thanks -- thank you
22 very much for being with us. I'm not like
23 looking to take up a lot of your day or
24 anything like that.

25 Are you -- first, can you state

1 and spell your name for the record?

2 A. Scott, S-c-o-t-t; last name
3 Warren, W-a-r-r-e-n.

4 Q. Okay. And who are you employed
5 by?

6 A. I'm employed by B&W Resources.

7 Q. All right. And that's B,
8 ampersand, W?

9 A. Yes.

10 Q. All right. And does B&W Resources
11 sometimes go by the name Lipari, L-i-p-a-r-i,
12 Energy, Inc.?

13 A. So B&W Resources is owned by a
14 company called Lipari Coal Holdings. Lipari
15 Energy is a defunct company that did own B&W,
16 but that's been ten years ago.

17 Q. Okay. Got it. And what's your
18 position at B&W Resources?

19 A. I am the chief financial officer.

20 Q. Okay. And how many employees does
21 B&W Resources have?

22 A. We have approximately 135.

23 Q. Okay. And are you the nice man
24 who's been responding to my subpoenas?

25 A. I -- yes.

1 Q. Okay. I do appreciate that. All
2 right. I don't know how much you know about
3 the background of this, but my client, ACC, is
4 in a dispute with Fire Star, who sometimes
5 supplies it with coal. Fair enough so far,
6 just to orient us as to date and time?

7 A. Yes.

8 Q. Okay. And I'm given to understand
9 that the coal that Fire Star has supplied to
10 ACC comes from a B&W mine that -- MSHA mine
11 number 158731. Is that correct, to your
12 understanding?

13 A. So B&W Resources has supplied Fire
14 Star with coal over the years, but we -- we
15 don't really -- you know, all that we do is
16 kind of an arm's length transaction. We'll
17 sell them the coal, but we have no knowledge of
18 where they ship that to.

19 Q. Gotcha. So with regard to mine
20 MSHA 151873 -- sorry -- 8781, do you guys refer
21 to that mine as the Chavies mine?

22 A. That is correct. We -- here we
23 call it Chavies.

24 Q. Chavies.

25 A. But that's --

1 Q. Okay. I do apologize. And that's
2 C-h-a-v-i-e-s?

3 A. Correct.

4 Q. All right. Great. So fair to say
5 that, you know, although you don't know who
6 Fire Star supplies to, from time to time B&W
7 has supplied Fire Star with coal out of the
8 Chavies mine?

9 A. That's correct.

10 Q. All right. And is it -- does it
11 happen to be a particular kind of coal, or is
12 it multiple types?

13 A. It would be multiple types, just
14 depending on what we're mining and the excess
15 capacity we have at the time.

16 Q. Okay. And in the case involving
17 my client, the type of coal -- I've sometimes
18 seen referred to as C coal or low sulfur coal.
19 Is that a product that sounds familiar to you
20 as being produced by the Chavies mine?

21 A. Yes.

22 Q. All right. And fair to say that
23 in 2021 and 2022, from time to time B&W
24 Resources supplied Fire Star with low sulfur C
25 coal out of the Chavies mine?

1 A. Yes.

2 Q. And do you have a sense of when --
3 when B&W -- when Fire Star, let's say, stopped
4 requesting coal of that type from the Chavies
5 mine in 2022?

6 A. The only time that we were unable
7 to supply even B&W's operations, there was a
8 flood in 2022 that prohibited B&W from shipping
9 coal from that mine for a couple months. But
10 outside that, if we had the excess capacity and
11 they wanted to purchase any of that volume, we
12 would -- we would sell the coal to Fire Star.

13 Q. Okay. Got it. Let me display on
14 my screen what's been marked as Exhibit 1 to
15 your deposition. Hold on.

16 (Exhibit 1 was marked for.
17 identification.)

18 BY MS. RATHKE:

19 Q. Can you see on your screen a
20 document that bears a yellow exhibit sticker
21 number 1?

22 A. Yes.

23 Q. All right. And I'll make it a
24 little bigger. Do you recognize Exhibit 1 to
25 be B&W's response to the subpoena for documents

1 served on B&W?

2 A. I do, yes.

3 Q. All right. Page 2, I guess,
4 attaches a letter from B&W Resources to a
5 client whose name is crossed out dated
6 August 30, 2022.

7 Do you see that?

8 A. Yes.

9 Q. All right. Is this portion of
10 Exhibit 1, is this a letter that B&W Resources,
11 Inc. sent out to clients about a month after
12 the flooding that occurred at the -- in
13 Kentucky in 2022?

14 A. That is correct. We had --

15 Q. All right.

16 A. We had had conversations with that
17 particular customer, the document, yeah, prior
18 conversations and kind of updating them in
19 writing the position of the Chavies mine.

20 Q. Okay. And so would Fire Star have
21 received a letter substantially like what's
22 attached here in Exhibit 1?

23 A. We did not provide Fire Star with
24 that particular letter.

25 Q. Okay. Did anybody from B&W

1 Resources have conversations with anybody at
2 Fire Star about specifically the closure of the
3 Chavies mine?

4 A. Probably to say 100 percent sure,
5 no, but we were in contact with -- during that
6 particular time with Fire Star pretty
7 regularly, so I'm sure the conversation did
8 come up.

9 Q. Okay. And I take it Fire Star
10 ordered coal from B&W from mines other than
11 Chavies, correct?

12 A. Yes. If we had like -- as I said
13 earlier, if we had -- if we had the excess
14 capacity, we would sell coal to Fire Star from
15 time to time.

16 Q. Okay. And what does that mean
17 exactly, if you had extra -- you say excess
18 capacity?

19 A. So we -- we've got numerous
20 customers that we would sell that particular
21 product to. If we mined -- I'm just saying for
22 example. If the customers required 50,000 tons
23 and we mined 55 during a given period, we would
24 sell that coal to another customer, which could
25 include Fire Star.

1 Q. Okay. So am I understanding you
2 correctly that if there were times where other
3 customers would order your full output of the
4 type of coal we've been talking about, the low
5 sulfur C coal, then you would not be able to
6 supply to Fire Star because there wouldn't be
7 any excess?

8 A. That's correct. If we -- if we
9 had long-term contracts with other customers,
10 they would come first.

11 Q. Okay. That makes sense to me.

12 And in 2021 and 2022, did that ever
13 happen, when Fire Star would call up for that low
14 sulfur C coal from the Chavies mine, but you
15 simply didn't have any excess capacity to supply
16 them with?

17 A. It would, yes.

18 Q. All right. And how often would
19 that occur?

20 A. I really couldn't answer that. I
21 would just be guessing, so...

22 Q. Okay. But at some times?

23 A. It does -- it does happen, yes.
24 And not only Fire Star, but other customers as
25 well.

1 Q. Okay. Fair enough. And am I
2 understanding correctly that while some
3 customers have long-term agreements for low
4 sulfur C coal from the Chavies mine, in 2021
5 and 2022, Fire Star did not?

6 A. That's right. We didn't have any
7 kind of executed contract with Fire Star.

8 Q. So how -- when you did have excess
9 low sulfur C coal to provide to Fire Star from
10 the Chavies mine, how would pricing for that
11 contract be established?

12 A. It would be based on market
13 pricing.

14 Q. Okay. And is there a way for you
15 to know throughout 2021, 2022 what that market
16 pricing would be? Is that with reference to
17 some kind of an index or something?

18 A. We get a Coal Daily report each
19 day that we use that as kind of a yardstick to
20 base our market pricing for. And that's --

21 Q. And --

22 A. They -- it changes. It could
23 change every day, sometimes every week.

24 Q. Okay. And you called it a
25 Co [sic] Daily report?

1 A. Yes.

2 Q. And what is a Co Daily report?

3 Apologies, I'm not -- I'm in your industry for
4 the purpose of litigating sometimes, but
5 obviously not nearly as deeply as you.

6 A. It's kind of a third party that
7 goes kind of out on the open market and they'll
8 have communications with utilities, buyers,
9 sellers, and they report those -- any
10 transaction where there may be a contract or a
11 sale, and we can buy that report annually.

12 Q. Okay.

13 A. That gives us price or material.

14 Q. And what's that report called if I
15 wanted to take a look at it or access it?

16 A. I think it's actually called the
17 Coal Daily.

18 Q. Okay. And is it C-o, dash,
19 D-a-i-l-y or something else?

20 A. It's actually my slang. C-o-a-l,
21 Daily, D-a-i --

22 Q. Oh, I'm sorry.

23 A. Yeah.

24 Q. You know, for this case I've been
25 eternally compromised by the fact that I'm

1 originally from northern Minnesota, and so I
2 don't understand well anybody from Kentucky,
3 and it doesn't seem to be a bridgeable problem.
4 So I apologize; my fault.

5 A. No problem.

6 Q. Right. We do iron ore, not coal.

7 A. I would be telling you a story if
8 I said you were the first to not understand my
9 pronunciations.

10 Q. Well, let's not us be telling
11 stories here in this deposition. So I
12 appreciate that. That's my fault.

13 So Coal Daily. All right. Is
14 there a publisher of that?

15 A. There is. If it would help, I can
16 send everyone a copy of one during -- a current
17 one or even one during '21, '22.

18 Q. It would help just to get an
19 example of it so I can kind of get a look at
20 what it -- you know, what it looked like in
21 2021 and 2022. I don't want to deprive anybody
22 of any, you know, revenues that they're
23 entitled to since it sounds like this is
24 something really that people should be
25 subscribing to. So if I could get enough

1 information so that I could obtain it, that
2 would be wonderfully helpful.

3 A. Sure, yeah, I don't have a problem
4 with that.

5 Q. Okay. I appreciate that. And
6 we'll -- Lauryn will follow up with you all
7 afterwards for that. We'll share it with the
8 group, too, so everybody's got the same stuff.

9 Okay. So if you wanted to find out,
10 you know, how often Fire Star in 2021 and 2022 had
11 called up to get low sulfur C coal from the
12 Chavies mine but it wasn't available, is there a
13 way that you could ascertain that information?

14 A. Probably not. Most of the
15 communication we have with Fire Star is either
16 in person or over the telephone. So probably
17 would be no written communication.

18 Q. Okay. Got it. And if you're
19 dealing with somebody from Fire Star,
20 specifically what individual do you deal with
21 most often?

22 A. Typically I deal with Duane Jones.

23 Q. Okay. And do you ever deal with
24 Tim Jones?

25 A. Occasionally.

1 Q. Okay. And the conduit of
2 information for communications between you and
3 Duane Jones, is that the most common conduit
4 that the two companies would be interacting
5 through?

6 A. Yes.

7 Q. Okay. Sounds good. And if he
8 needs -- if Fire Star needs coal from the
9 Chavies mine, would it be typical for him to
10 just call you?

11 A. Probably either myself or Richard
12 Liperote, one of the owners of B&W.

13 Q. Okay. And approximately in 2021
14 and 2022, for that specific type of coal --
15 strike that. Let me ask you this.

16 So if Fire Star needs that kind of
17 coal, the low sulfur C coal, from the Chavies
18 mine, do they call you with orders from a number
19 of mines including that one, or would they
20 typically call you for that product separately?

21 A. They typically did -- if -- I
22 guess if -- you know, if they're needing extra
23 tonnage, they would call or stop by and just
24 ask what we would have at that time. Most of
25 the time, we don't have extra capacity. So

1 it's not like every week, every month. So it's
2 just kind of a -- it's not -- every time they
3 ask, we are not able to provide them with
4 tonnage.

5 Q. Okay. All right. That makes
6 sense to me.

7 Okay. So back to the rains and
8 that terrible disaster that happened in
9 Kentucky in July 2021, I take it that that
10 substantially took out the Chavies mine for a
11 period of time; is that accurate?

12 A. Yes. It's July 2022.

13 Q. Okay. You're right. I'm sorry.
14 Yeah. Okay. So, you know, what happened to
15 the mine and how was it disabled by the floods?

16 A. So, of course, I don't know, you
17 know, how much you knew about what happened
18 there, but it was -- it was pretty devastating
19 for the area. We had to shut the Chavies mine
20 down for a week or so just because it did
21 impact a lot of the employees there. We didn't
22 have any employees that actually lost their
23 life, but some did lose their homes. So we had
24 to try to, you know, massage that best we
25 could.

1 But -- so there was two entrances
2 to Chavies, one which was kind of a back area
3 that we could get certain -- people could get
4 there, but we could not transport any tonnage
5 over that -- over that road. So I think just
6 in broad numbers, we were a couple months
7 without being able to move any tonnage from the
8 Chavies mine.

9 Q. Okay. A couple months, like two?

10 A. Two, yeah. I think it was right
11 at two months.

12 Q. Let me show you a document that
13 you gave us and let me just ask about what it
14 is because I think this may help some.

15 (Exhibit 2 was marked
16 for identification.)

17 BY MS. RATHKE:

18 Q. On account of the fact that I'm
19 assuming that you sent it to us for some
20 reason.

21 All right. Can you see on the
22 screen a document that bears exhibit label 2?

23 A. Yes.

24 Q. All right. Let me blow it up for
25 you. Exhibit 2 is something that I think you

1 all provided us with pursuant to subpoena; fair
2 enough?

3 A. Yes, I did.

4 Q. Okay. Can you tell me what
5 Exhibit 2 is?

6 A. So we have a load-out. We call it
7 the Yellow Creek load-out.

8 Q. Okay.

9 A. Basically all of B&W's production
10 is hauled from the mine site into this
11 load-out. This report that we're looking at is
12 the scale report that I ran from -- from the
13 load-out. And I dated it August 1st of '22
14 through October 10th of '22 just so you could
15 see the range of kind of when we started or the
16 gap of when we started hauling coal from after
17 that flood started or happened.

18 Q. Okay.

19 A. So the first truck that came from
20 the Chavies mine was September 30th of '22.

21 Q. Okay. So in this Exhibit 2 where
22 it starts -- where it says CHAV7 Chavies job
23 number 7 and the 7 entries under that by date,
24 does -- do those -- does that portion of
25 Exhibit 2 depict kind of when the Chavies mine

1 got up and running again after the flood?

2 A. That's correct.

3 Q. All right. So -- and if I'm
4 understanding this correctly, the first coal
5 that was moved out of Chavies after the --
6 after recovery from the flood was September 30,
7 2022; is that correct?

8 A. Yes.

9 Q. All right. It looks like 20
10 loads. Am I understanding that correctly?

11 A. That is correct.

12 Q. And is that -- is that, I guess,
13 normal production for the Chavies mine, or is
14 that depressed from what you would usually
15 expect had there been no flood?

16 A. That's probably -- if you look --
17 if you look at the next few days afterwards,
18 20 loads is probably higher than a typical day.
19 So, you know, if you look at the average there
20 for roughly ten days, that would be the high.

21 Q. Okay. So is it fair to say that
22 as of September 30, 2022, Chavies was fully
23 functional, up and running, and probably also
24 playing catchup to get caught up on customer
25 orders?

1 A. That's fair, yes.

2 Q. All right. Okay. And the other
3 portions -- the other information in Exhibit 2,
4 does that pertain to mines other than Chavies,
5 or does any of that information pertain to
6 Chavies?

7 A. Those are outside of Chavies.
8 Only the Chavies job 7 is the Chavies mine.

9 Q. Okay. And during -- between the
10 floods in July 2022 and when Chavies was back
11 up and running on September 30, 2022, did Fire
12 Star attempt to place any excess low sulfur C
13 coal orders from the Chavies mine?

14 A. That I couldn't -- I couldn't
15 answer. I'm not sure. I guess the only thing
16 I would add there is, the letter -- the
17 previous exhibit, another customer, so we -- we
18 were behind with that contracted customer, so
19 we had to -- you know, we had no choice but
20 play catchup to them. So once we got behind
21 there, we wouldn't have had any excess capacity
22 until we caught those -- that particular
23 customer to the point that --

24 Q. Okay.

25 A. -- within -- within our schedule.

1 Q. And I guess, is it fair to say,
2 based on what I'm understanding that you just
3 said, that because you did have customers that
4 you were under contract with for this type of
5 coal, the low sulfur C coal, there is no way
6 you would have had excess capacity with which
7 to supply Fire Star, let's just say, clear to
8 the end of 2022; is that accurate?

9 A. That's accurate, yeah. We -- we
10 would have had to supplied the contracted tons
11 first.

12 Q. Okay. With regard to that type of
13 coal, did you understand Fire Star to be a
14 broker rather than a producer?

15 A. Yes. Because of the relationship
16 we had with Fire Star, we -- we knew that they
17 were not a producer, they just were a broker.

18 Q. Okay. And based on your
19 understanding of the industry, is that type of
20 low sulfur C coal available from other mines in
21 the United States?

22 A. I'm -- that's kind of a tough
23 one. You know, based on the area that we mine,
24 any -- anyone that would be mining in that
25 geographic area, that would be a true

1 statement.

2 MS. RATHKE: Okay. All right.
3 Listen, I appreciate your willingness to spend
4 a few moments with me answering these
5 questions. I don't have any further questions
6 for you. I really appreciate your cooperation
7 with our subpoenas.

8 Barry Hunter, representing Fire
9 Star, might have some questions for you at this
10 time. But thanks so much. I know this is
11 not -- you know, we made something your problem
12 that really didn't start out being your
13 problem.

14 THE WITNESS: Not a problem. I'm
15 glad I could help.

16 MS. RATHKE: Okay.

17 MR. HUNTER: And I just have a
18 couple, Mr. Warren.

19 EXAMINATION

20 BY MR. HUNTER:

21 Q. As I understand your testimony,
22 from July 20 until the end of September, no
23 customers could get any coal out of the Chavies
24 mine; is that correct?

25 A. That is correct.

1 Q. And then I think you said that
2 thereafter for at least a month, Fire Star
3 would have had a problem getting coal because
4 you would have had to have catch -- caught up
5 with other long-term customers?

6 A. Yes, that's correct.

7 Q. Okay. And then with regard to
8 whether you would characterize Fire Star as a
9 broker or producer, isn't it fair to say that
10 they're kind of a hybrid in that while they
11 don't have their own mine, they have their own
12 load-out, which is unlike what a typical broker
13 has?

14 A. That's right. They would be more
15 of a processing -- I guess in technical terms,
16 a processing company.

17 Q. Okay. And I think that we know
18 that they actually bought a load-out from you
19 last year; is that true?

20 A. That is correct. They bought --

21 Q. And even before that, for years
22 and years and years, they had another load-out
23 facility adjacent to that load-out that they
24 bought from you?

25 A. Yes.

1 MR. HUNTER: Okay. That's all I
2 have.

3 MS. RATHKE: Wonderful. All right.
4 Listen, with our thanks, I'm sure our joint
5 thanks, let's go off the record and you can be
6 excused.

7 I think -- I don't know how it is
8 for true third parties, but I think you can --
9 let's go off the record.

10 THE VIDEOGRAPHER: Yeah, going off
11 the record at 10:29. Please stand by.

12 (Deposition concluded at 10:29 a.m.)

13 * * *

14

15

16

17

18

19

20

21

22

23

24

25

1 COMMONWEALTH OF KENTUCKY :

: SS

2 COUNTY OF KENTON :

3

4 I, Patti Stachler, RMR, CRR, a Notary
5 Public within and for the Commonwealth of
6 Kentucky, duly commissioned and qualified,

7 DO HEREBY CERTIFY that the
8 above-named SCOTT WARREN was by me first remotely
9 duly sworn to testify the truth, the whole truth,
10 and nothing but the truth.

11 Said testimony was reduced to
12 writing by me stenographically in the presence
13 of the witness and thereafter reduced to
14 typewriting.

15 I FURTHER CERTIFY that I am not a
16 relative or attorney of either party, in any
17 manner interested in the event of this action,
18 nor am I, or the court reporting firm with
19 which I am affiliated, under a contract as
20 defined in Civil Rule 28(D).

21

22

23

24

25

Page 27

IN WITNESS WHEREOF, I hereunto set my
hand and official seal of office at Covington,
Kentucky, this 30th day of August 2023.

I, Ruth Stables :ky
Notary Public - State at Large, for acts
performed in or outside Kentucky for
recordation in Kentucky; my commission expires:
May 11, 2024.

Veritext Legal Solutions

1100 Superior Ave

Suite 1820

Cleveland, Ohio 44114

Phone: 216-523-1313

September 6, 2023

Scott Warren, 30(b)(6)

300 Liperote Way,

London, KY, 40741

Case Name: American Colloid Company v. Fire Star Energy Resources LLC

Veritext Reference Number: 6074273

Deposition Date: 8/29/2023

Dear Sir/Madam:

Enclosed you will find a transcript of your deposition.

As the reading and signing have not been expressly

waived, please review the transcript and note any

changes or corrections on the errata sheet

included, indicating the page, line number, change and

reason for the change. Sign at the bottom of the sheet

in the presence of a notary and forward the errata sheet

back to us at the address shown above or email to

production-midwest@veritext.com.

If the errata is not returned within thirty days of your receipt of

this letter, the reading and signing will be deemed waived.

Sincerely,

Production Department

NO NOTARY REQUIRED IN CA

DEPOSITION REVIEW
CERTIFICATION OF WITNESS

ASSIGNMENT REFERENCE NO: 6074273

CASE NAME: American Colloid Company v. Fire Star Energy
Resources LLC

DATE OF DEPOSITION: 8/29/2023

WITNESS' NAME: Scott Warren , 30(b)(6)

In accordance with the Rules of Civil
Procedure, I have read the entire transcript of
my testimony or it has been read to me.

I have made no changes to the testimony
as transcribed by the court reporter.

Date Scott Warren , 30(b)(6)

Sworn to and subscribed before me, a
Notary Public in and for the State and County,
the referenced witness did personally appear
and acknowledge that:

They have read the transcript;
They signed the foregoing Sworn
Statement; and

Their execution of this Statement is of
their free act and deed.

I have affixed my name and official seal

this _____ day of _____, 20____.

Notary Public

Commission Expiration Date

DEPOSITION REVIEW
CERTIFICATION OF WITNESS

ASSIGNMENT REFERENCE NO: 6074273

CASE NAME: American Colloid Company v. Fire Star Energy
Resources LLC

DATE OF DEPOSITION: 8/29/2023

WITNESS' NAME: Scott Warren , 30(b)(6)

In accordance with the Rules of Civil
Procedure, I have read the entire transcript of
my testimony or it has been read to me.

I have listed my changes on the attached
Errata Sheet, listing page and line numbers as
well as the reason(s) for the change(s).

I request that these changes be entered
as part of the record of my testimony.

I have executed the Errata Sheet, as well
as this Certificate, and request and authorize
that both be appended to the transcript of my
testimony and be incorporated therein.

Date Scott Warren , 30(b)(6)

Sworn to and subscribed before me, a
Notary Public in and for the State and County,
the referenced witness did personally appear
and acknowledge that:

They have read the transcript;
They have listed all of their corrections
in the appended Errata Sheet;
They signed the foregoing Sworn
Statement; and
Their execution of this Statement is of
their free act and deed.

I have affixed my name and official seal
this _____ day of _____, 20____.

Notary Public

Commission Expiration Date

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19

ERRATA SHEET
VERITEXT LEGAL SOLUTIONS MIDWEST
ASSIGNMENT NO: 6074273

PAGE/LINE(S) /	CHANGE	/REASON
----------------	--------	---------

Date Scott Warren , 30(b)(6)
SUBSCRIBED AND SWORN TO BEFORE ME THIS _____
DAY OF _____, 20____ .

Notary Public

Commission Expiration Date

[01342 - appearances]

Page 1

0	15:10 16:14	4900 3:6	acknowledge
01342 1:9	17:12 20:7,22	5	29:11 30:16
1	21:10,11 22:8	50,000 10:22	act 29:14 30:20
1 2:9 8:14,16	2023 1:22 4:2	55 10:23	action 26:17
8:21,24 9:10	27:3 28:4	6	acts 27:6
9:22	2024 27:9	6 1:15 4:7 28:4	actually 13:16
100 10:4	21 14:17	28:5 29:4,9	13:20 17:22
10:04 1:23 4:3	216-523-1313	30:4,13 31:20	24:18
10:29 25:11,12	28:3	6074273 28:8	add 21:16
10th 19:14	216.479.8533	29:2 30:2 31:2	address 28:18
11 27:9	3:7	7	adjacent 24:23
1100 28:1	22 14:17 19:13	7 19:23,23 21:8	affiliated 26:19
127 3:6	19:14,20	8	affixed 29:15
135 5:22	22259 27:5	8 2:9	30:21
151873 6:20	23 2:4	8/29/2023 28:9	ago 5:16
158731 6:11	250 3:13	29:3 30:3	agreements
18 2:10	28 26:20	859.231.0000	12:3
1820 28:2	2800 3:13	3:14	american 1:6
1st 19:13	29 1:22	8781 6:20	4:5,11 28:7
2	29th 4:2	a	29:3 30:3
2 2:10 9:3	3	a.m. 1:23 4:3	ampersand 5:8
18:15,22,25	30 1:15 4:7 9:6	25:12	annually 13:11
19:5,21,25	20:6,22 21:11	able 11:5 17:3	answer 11:20
21:3	28:5 29:4,9	18:7	21:15
20 20:9,18	30:4,13 31:20	above 26:8	answering 23:4
23:22 29:16	300 1:21 28:5	28:18	anybody 9:25
30:22 31:22	30th 19:20 27:3	acc 4:11 6:3,10	10:1 14:2,21
2021 7:23	3:22 1:9	access 13:15	apologies 13:3
11:12 12:4,15	4	accordance	apologize 7:1
14:21 15:10	4 2:4	29:5 30:5	14:4
16:13 17:9	40507 3:14	account 18:18	appear 29:11
2022 7:23 8:5,8	40741 28:6	accurate 17:11	30:15
9:6,13 11:12	44114 3:7 28:2	22:8,9	appearances
12:5,15 14:21			3:1

[appeared - coal]

Page 2

appeared 3:1	8:3,8 9:1,4,10	c	changes 12:22
appended	9:25 10:10	c 5:2 7:2,18,24	28:14 29:7
30:11,18	16:12	11:5,14 12:4,9	30:7,9
appreciate 6:1	b&w's 8:7,25	13:18,20 15:11	characterize
14:12 15:5	19:9	16:17 21:12	24:8
23:3,6	back 17:7 18:2	22:5,20	chav7 19:22
approximately	21:10 28:18	ca 28:25	chavies 6:21,23
4:3 5:22 16:13	background	call 6:23 11:13	6:24 7:8,20,25
area 17:19 18:2	6:3	16:10,18,20,23	8:4 9:19 10:3
22:23,25	barry 3:12 4:13	19:6	10:11 11:14
arm's 6:16	23:8	called 1:17 5:14	12:4,10 15:12
ascertain 15:13	base 12:20	12:24 13:14,16	16:9,17 17:10
assignment	based 12:12	15:11	17:19 18:2,8
29:2 30:2 31:2	22:2,18,23	capacity 7:15	19:20,22,25
assuming 18:19	basically 19:9	8:10 10:14,18	20:5,13,22
attached 9:22	bears 8:20	11:15 16:25	21:4,6,7,8,8,10
30:7	18:22	21:21 22:6	21:13 23:23
attaches 9:4	behalf 3:3,10	case 7:16 13:24	chief 5:19
attempt 21:12	best 17:24	28:7 29:3 30:3	choice 21:19
attorney 26:16	bhunter 3:15	catch 24:4	civil 1:18 26:20
august 1:22 4:2	bigger 8:24	catchup 20:24	29:5 30:5
9:6 19:13 27:3	blow 18:24	21:20	clear 22:7
authorize	boggs 3:4	caught 20:24	cleveland 3:7
30:11	bottom 28:16	21:22 24:4	28:2
available 15:12	bought 24:18	certain 18:3	client 6:3 7:17
22:20	24:20,24	certificate	9:5
ave 28:1	bridgeable	30:11	clients 9:11
average 20:19	14:3	certification	clint 3:18
b	broad 18:6	29:1 30:1	closure 10:2
b 1:15 3:5 4:7	broker 22:14	certified 4:17	coal 2:10 5:14
5:7 28:5 29:4,9	22:17 24:9,12	certify 26:7,15	6:5,9,14,17 7:7
30:4,13 31:20	brown 3:11	change 12:23	7:11,17,18,18
b&w 5:6,10,13	buy 13:11	28:15,16 30:8	7:25 8:4,9,12
5:15,18,21	buyers 13:8	31:3	10:10,14,24
6:10,13 7:6,23			11:4,5,14 12:4

[coal - document]

Page 3

12:9,18 13:17 14:6,13 15:11 16:8,14,17,17 19:16 20:4 21:13 22:5,5 22:13,20 23:23 24:3 colloid 1:6 4:5 4:11 28:7 29:3 30:3 come 10:8 11:10 comes 6:10 commission 27:8 29:19 30:25 31:25 commissioned 26:6 common 16:3 commonwealth 1:21 26:1,5 communication 15:15,17 communicati... 13:8 16:2 companies 16:4 company 1:6 4:5,11 5:14,15 24:16 28:7 29:3 30:3 compromised 13:25 concierge 3:18 concluded 25:12	conduit 16:1,3 contact 10:5 contract 12:7 12:11 13:10 22:4 26:19 contracted 21:18 22:10 contracts 11:9 conversation 10:7 conversations 9:16,18 10:1 cooperation 23:6 copy 14:16 correct 6:11,22 7:3,9 9:14 10:11 11:8 20:2,7,11 23:24,25 24:6 24:20 corrections 28:14 30:17 correctly 11:2 12:2 20:4,10 counsel 4:8 county 26:2 29:10 30:15 couple 8:9 18:6 18:9 23:18 course 17:16 court 1:1 26:18 29:7 covington 27:2	creek 19:7 crossed 9:5 crr 1:20 26:4 current 14:16 customer 9:17 10:24 20:24 21:17,18,23 customers 10:20,22 11:3 11:9,24 12:3 22:3 23:23 24:5 cv 1:9 d d 2:1 3:12 13:19,21 26:20 daily 12:18,25 13:2,17,21 14:13 dash 13:18 date 2:10 6:6 19:23 28:9 29:3,9,19 30:3 30:13,25 31:20 31:25 dated 9:5 19:13 day 4:23 12:19 12:23 20:18 27:3 29:16 30:22 31:22 days 20:17,20 28:20 deal 15:20,22 15:23	dealing 15:19 dear 28:10 deed 29:14 30:20 deemed 28:21 deeply 13:5 defendant 1:11 3:10 defined 26:20 defunct 5:15 department 28:23 depending 7:14 depict 19:25 deposed 4:18 deposition 1:16 4:7 8:15 14:11 25:12 28:9,11 29:1,3 30:1,3 depressed 20:14 deprive 14:21 description 2:8 devastating 17:18 direct 2:10 disabled 17:15 disaster 17:8 display 8:13 dispute 6:4 district 1:1,2 division 1:3 document 8:20 9:17 18:12,22
---	--	---	--

documents 8:25 duane 15:22 16:3 duly 4:16 26:6 26:9 durham 3:5 4:12	event 26:17 everybody's 15:8 exactly 10:17 examination 1:17 2:4,4 4:19 23:19 examined 4:17 example 10:22 14:19 excess 7:14 8:10 10:13,17 11:7,15 12:8 21:12,21 22:6 excused 25:6 executed 12:7 30:10 execution 29:14 30:19 exhibit 2:8,9,10 8:14,16,20,24 9:10,22 18:15 18:22,25 19:5 19:21,25 21:3 21:17 exhibits 2:7 expect 20:15 expiration 29:19 30:25 31:25 expires 27:8 expressly 28:12 extra 10:17 16:22,25	f facility 24:23 fact 13:25 18:18 fair 6:5 7:4,22 12:1 19:1 20:21 21:1 22:1 24:9 familiar 7:19 far 6:5 fault 14:4,12 fbtlaw.com 3:15 federal 1:18 financial 5:19 find 15:9 28:11 fire 1:10 4:5,13 6:4,9,13 7:6,7 7:24 8:3,12 9:20,23 10:2,6 10:9,14,25 11:6,13,24 12:5,7,9 15:10 15:15,19 16:8 16:16 21:11 22:7,13,16 23:8 24:2,8 28:7 29:3 30:3 firm 26:18 first 4:16,25 11:10 14:8 19:19 20:4 22:11 26:8 flood 8:8 19:17 20:1,6,15	flooding 9:12 floods 17:15 21:10 follow 15:6 follows 4:18 foregoing 29:13 30:18 forward 28:17 free 29:14 30:20 frost 3:11 full 11:3 fully 20:22 functional 20:23 further 23:5 26:15
e			
e 2:1 5:3 7:2 earlier 10:13 eastern 4:3 either 15:15 16:11 26:16 email 28:18 employed 5:4,6 employees 5:20 17:21,22 enclosed 28:11 energy 1:10 4:6 4:14 5:12,15 28:7 29:3 30:3 entered 30:9 entire 29:5 30:5 entitled 14:23 entrances 18:1 entries 19:23 errata 28:14,17 28:20 30:7,10 30:18 31:1 esq 3:5,5,12 established 12:11 eternally 13:25			g gap 19:16 geographic 22:25 getting 24:3 given 6:8 10:23 gives 13:13 glad 23:15 go 5:11 25:5,9 goes 13:7 going 25:10 good 16:7 gotcha 6:19 great 7:4 group 15:8 guess 9:3 16:22 20:12 21:15 22:1 24:15

[guessing - lot]

Page 5

guessing 11:21 guys 6:20	including 16:19 incoming 2:10 incorporated 30:12 index 2:7 12:17 indicating 28:15 individual 15:20 industry 13:3 22:19 information 15:1,13 16:2 21:3,5 interacting 16:4 interested 26:17 involving 7:16 iron 14:6	key 3:6 kind 6:16 7:11 9:18 12:7,17 12:19 13:6,7 14:19 16:16 17:2 18:2 19:15,25 22:22 24:10 knew 17:17 22:16 know 6:2,2,15 7:5,5 12:15 13:24 14:20,22 15:10 16:22 17:14,16,17,24 20:19 21:19 22:23 23:10,11 24:17 25:7 knowledge 6:17 ky 28:6	lexington 3:14 life 17:23 line 28:15 30:7 31:3 lipari 5:11,14 5:14 liperote 1:21 16:12 28:5 listed 30:7,17 listen 23:3 25:4 listing 30:7 litigating 13:4 little 8:24 llc 1:10 4:6 28:7 29:3 30:3 llp 3:4 load 19:6,7,11 19:13 24:12,18 24:22,23 loads 20:10,18 london 1:22 28:6 long 11:9 12:3 24:5 look 13:15 14:19 20:16,17 20:19 looked 14:20 looking 4:23 19:11 looks 20:9 lose 17:23 lost 17:22 lot 4:23 17:21
h			
h 7:2 hand 27:2 happen 7:11 11:13,23 happened 17:8 17:14,17 19:17 hailed 19:10 hauling 19:16 help 14:15,18 18:14 23:15 helpful 15:2 hereinafter 4:17 hereunto 27:1 high 20:20 higher 20:18 hold 8:15 holdings 5:14 homes 17:23 hunter 2:4 3:12 4:13,13 23:8 23:17,20 25:1 hybrid 24:10	j	l	
i	job 19:22 21:8 joint 25:4 jones 15:22,24 16:3 july 17:9,12 21:10 23:22	l 5:11 13:19,20 label 18:22 large 27:6 lauryn 3:5 4:12 15:6 lauryn.durham 3:8 legal 28:1 31:1 length 6:16 letter 9:4,10,21 9:24 21:16 28:21	
identification 8:17 18:16 identify 4:8 impact 17:21 include 10:25 included 28:15	k		
	kathryn 3:5 kenton 26:2 kentucky 1:21 1:22 3:14 9:13 14:2 17:9 26:1 26:6 27:3,5,7,8		

[low - party]

Page 6

low 7:18,24 11:4,13 12:3,9 15:11 16:17 21:12 22:5,20	mined 10:21,23 mines 10:10 16:19 21:4 22:20	31:23 note 28:13 number 6:11 8:21 16:18 19:23 28:8,15 numbers 18:6 30:7 numerous 10:19	18:9 19:4,8,18 19:21 20:21 21:2,9,24 22:12,18 23:2 23:16 24:7,17 25:1
m	mining 7:14 22:24 minnesota 14:1 moments 23:4 month 9:11 17:1 24:2 months 8:9 18:6,9,11 move 18:7 moved 20:5 msha 6:10,20 multiple 7:12 7:13	o	once 21:20 open 13:7 operations 8:7 order 11:3 ordered 10:10 orders 16:18 20:25 21:13 ore 14:6 orient 6:6 originally 14:1 output 11:3 outside 8:10 21:7 27:7 own 5:15 24:11 24:11 owned 5:13 owners 16:12
madam 28:10 made 23:11 29:7 main 3:13 make 8:23 makes 11:11 17:5 man 5:23 manner 26:17 marked 8:14 8:16 18:15 market 12:12 12:15,20 13:7 massage 17:24 material 13:13 matter 4:4 mean 10:16 midwest 28:19 31:1 mine 2:10 6:10 6:10,19,21,21 7:8,20,25 8:5,9 9:19 10:3 11:14 12:4,10 15:12 16:9,18 17:10,15,19 18:8 19:10,20 19:25 20:13 21:8,13 22:23 23:24 24:11	n n 2:1 5:3 name 5:1,2,11 9:5 28:7 29:3,4 29:15 30:3,4 30:21 named 26:8 nearly 13:5 needing 16:22 needs 16:8,8,16 nice 5:23 normal 20:13 northern 1:2 14:1 notary 1:20 26:4 27:6 28:17,25 29:10 29:18 30:15,23	o 5:2 13:18,20 obtain 15:1 obviously 13:5 occasionally 15:25 occur 11:19 occurred 9:12 october 19:14 office 27:2 officer 5:19 official 27:2 29:15 30:21 oh 13:22 ohio 1:2 3:7 28:2 okay 5:4,17,20 5:23 6:1,8 7:1 7:16 8:13 9:20 9:25 10:9,16 11:1,11,22 12:1,14,24 13:12,18 15:5 15:9,18,23 16:1,7,13 17:5 17:7,13,14	p p 5:11 page 2:3,8 9:3 28:15 30:7 31:3 part 30:9 particular 7:11 9:17,24 10:6 10:20 21:22 parties 25:8 party 13:6 26:16

[patti - responding]

Page 7

patti 1:19 26:4 patton 3:4 people 14:24 18:3 percent 10:4 performed 27:7 period 10:23 17:11 person 15:16 personally 29:11 30:15 pertain 21:4,5 phone 28:3 place 21:12 plaintiff 1:7,17 3:3 play 21:20 playing 20:24 please 4:8 25:11 28:13 point 21:23 portion 9:9 19:24 portions 21:3 position 5:18 9:19 presence 26:12 28:17 present 3:17 pretty 10:6 17:18 previous 21:17 price 13:13 pricing 12:10 12:13,16,20	prior 9:17 probably 10:4 15:14,16 16:11 20:16,18,23 problem 14:3,5 15:3 23:11,13 23:14 24:3 procedure 1:19 29:5 30:5 processing 24:15,16 produced 7:20 producer 22:14 22:17 24:9 product 7:19 10:21 16:20 production 19:9 20:13 28:19,23 prohibited 8:8 pronunciations 14:9 provide 9:23 12:9 17:3 provided 19:1 public 1:20 3:6 26:5 27:6 29:10,18 30:15 30:23 31:23 publisher 14:14 purchase 8:11 purpose 13:4 pursuant 1:18 19:1	q qualified 26:6 questions 23:5 23:5,9 r r 5:3,3,11 rains 17:7 ran 19:12 range 19:15 rather 22:14 rathke 2:4 3:5 4:10,10,20 8:18 18:17 23:2,16 25:3 read 29:5,6,12 30:5,6,17 reading 28:12 28:21 really 6:15 11:20 14:24 23:6,12 reason 18:20 28:16 30:8 31:3 receipt 28:20 received 9:21 recognize 8:24 record 4:2,9 5:1 25:5,9,11 30:9 recordation 27:8 recovery 20:6 reduced 26:11 26:13	refer 6:20 reference 12:16 28:8 29:2 30:2 referenced 29:11 30:15 referred 7:18 regard 6:19 22:12 24:7 regularly 10:7 relationship 22:15 relative 26:16 remote 1:15 remotely 3:1 4:16 26:8 report 12:18,25 13:2,9,11,14 19:11,12 reporter 29:7 reporting 26:18 representing 23:8 request 30:9,11 requesting 8:4 required 10:22 28:25 resources 1:10 4:6 5:6,10,13 5:18,21 6:13 7:24 9:4,10 10:1 28:7 29:3 30:3 responding 5:24
--	--	---	---

[response - stuff]

Page 8

response 8:25 returned 28:20 revenues 14:22 review 28:13 29:1 30:1 richard 16:11 right 4:21 5:7 5:10 6:2 7:4,10 7:22 8:23 9:3,9 9:15 11:18 12:6 14:6,13 17:5,13 18:10 18:21,24 20:3 20:9 21:2 23:2 24:14 25:3 rmr 1:20 26:4 road 18:5 roughly 20:20 rule 26:20 rules 1:18 29:5 30:5 running 20:1 20:23 21:11	scott 1:16 2:3 4:7,15 5:2 26:8 28:5 29:4,9 30:4,13 31:20 screen 8:14,19 18:22 seal 27:2 29:15 30:21 see 8:19 9:7 18:21 19:15 seem 14:3 seen 7:18 sell 6:17 8:12 10:14,20,24 sellers 13:9 send 14:16 sense 8:2 11:11 17:6 sent 9:11 18:19 separately 16:20 september 19:20 20:6,22 21:11 23:22 28:4 served 9:1 set 27:1 share 15:7 sheet 28:14,16 28:17 30:7,10 30:18 31:1 ship 6:18 shipping 8:8 show 18:12	shown 28:18 shut 17:19 sic 12:25 sign 28:16 signature 27:5 signed 29:13 30:18 signing 28:12 28:21 simply 11:15 sincerely 28:22 sir 28:10 site 19:10 slang 13:20 solutions 28:1 31:1 somebody 15:19 sorry 6:20 13:22 17:13 sounds 7:19 14:23 16:7 specific 16:14 specifically 10:2 15:20 spell 5:1 spend 23:3 square 3:6 squire 3:4 squirepb.com 3:8,8 ss 26:1 stachler 1:19 26:4	stand 25:11 star 1:10 4:5,14 6:4,9,14 7:6,7 7:24 8:3,12 9:20,23 10:2,6 10:9,14,25 11:6,13,24 12:5,7,9 15:10 15:15,19 16:8 16:16 21:12 22:7,13,16 23:9 24:2,8 28:7 29:3 30:3 start 23:12 started 19:15 19:16,17 starts 19:22 state 4:25 27:6 29:10 30:15 statement 23:1 29:13,14 30:19 30:19 states 1:1 22:21 stenographic... 26:12 steve 3:18 sticker 8:20 stop 16:23 stopped 8:3 stories 14:11 story 14:7 street 3:13 strike 16:15 stuff 15:8
s			
s 5:2 7:2 30:8,8 31:3 sale 13:11 sarah 3:5 4:10 sarah.rathke 3:8 saying 10:21 says 19:22 scale 19:12 schedule 21:25			

[subpoena - videotaped]

Page 9

subpoena 2:9 8:25 19:1 subpoenas 5:24 23:7 subscribed 29:10 30:14 31:21 subscribing 14:25 substantially 9:21 17:10 suite 3:13 28:2 sulfur 7:18,24 11:5,14 12:4,9 15:11 16:17 21:12 22:5,20 superior 28:1 supplied 6:9,13 7:7,24 22:10 supplies 6:5 7:6 supply 8:7 11:6 11:15 22:7 sure 4:10 10:4 10:7 15:3 21:15 25:4 sworn 4:17 26:9 29:10,13 30:14,18 31:21	talking 11:4 technical 24:15 telephone 15:16 tell 19:4 telling 14:7,10 ten 5:16 20:20 term 11:9 12:3 24:5 terms 24:15 terrible 17:8 testify 26:9 testimony 23:21 26:11 29:6,7 30:6,9 30:12 thank 4:21 thanks 4:21 23:10 25:4,5 thing 21:15 think 13:16 18:5,10,14,25 24:1,17 25:7,8 third 13:6 25:8 thirty 28:20 thomas 3:18 tim 15:24 time 4:3,4 6:6 7:6,6,15,23,23 8:6 10:6,15,15 16:24,25 17:2 17:11 23:10 times 11:2,22 today 4:2	todd 3:11 tonnage 16:23 17:4 18:4,7 tons 10:22 22:10 took 17:10 totals 2:10 tough 22:22 tower 3:6 transaction 6:16 13:10 transcribed 29:7 transcript 28:11,13 29:5 29:12 30:5,11 30:17 transport 18:4 troncone 3:18 truck 19:19 true 22:25 24:19 25:8 truth 26:9,9,10 try 17:24 two 16:4 18:1,9 18:10,11 type 7:17 8:4 11:4 16:14 22:4,12,19 types 7:12,13 typewriting 26:14 typical 16:9 20:18 24:12	typically 15:22 16:20,21
u			
unable 8:6 under 19:23 22:4 26:19 understand 6:8 14:2,8 22:13 23:21 understanding 6:12 11:1 12:2 20:4,10 22:2 22:19 united 1:1 22:21 updating 9:18 use 12:19 usually 20:14 utilities 13:8			
v			
v 7:2 28:7 29:3 30:3 vendor 2:10 veritext 28:1,8 31:1 veritext.com. 28:19 versus 4:5 video 4:2 videographer 3:18 4:1 25:10 videotaped 1:15			
t 5:2,2 take 4:6,23 10:9 13:15 17:9 taken 1:19			

[volume - yellow]

Page 10

volume 8:11 vs 1:9	writing 9:19 26:12
w	written 15:17
w 5:3,8	x
waived 28:13 28:21	x 2:1
want 14:21	y
wanted 8:11 13:15 15:9	y 13:19
warren 1:16 2:3 4:7,15 5:3 23:18 26:8 28:5 29:4,9 30:4,13 31:20	yardstick 12:19
way 1:21 12:14 15:13 22:5 28:5	yeah 9:17 13:23 15:3 17:14 18:10 22:9 25:10
we've 10:19 11:4	year 24:19
week 12:23 17:1,20	years 5:16 6:14 24:21,22,22
west 3:13	yellow 8:20 19:7
western 1:3	
whereof 27:1	
willingness 23:3	
witness 1:16 4:16 23:14 26:13 27:1 29:1,4,11 30:1 30:4,15	
wonderful 25:3	
wonderfully 15:2	

Federal Rules of Civil Procedure

Rule 30

(e) Review By the Witness; Changes.

(1) Review; Statement of Changes. On request by the deponent or a party before the deposition is completed, the deponent must be allowed 30 days after being notified by the officer that the transcript or recording is available in which:

(A) to review the transcript or recording; and

(B) if there are changes in form or substance, to sign a statement listing the changes and the reasons for making them.

(2) Changes Indicated in the Officer's Certificate. The officer must note in the certificate prescribed by Rule 30(f)(1) whether a review was requested and, if so, must attach any changes the deponent makes during the 30-day period.

DISCLAIMER: THE FOREGOING FEDERAL PROCEDURE RULES ARE PROVIDED FOR INFORMATIONAL PURPOSES ONLY.

THE ABOVE RULES ARE CURRENT AS OF APRIL 1, 2019. PLEASE REFER TO THE APPLICABLE FEDERAL RULES OF CIVIL PROCEDURE FOR UP-TO-DATE INFORMATION.

VERITEXT LEGAL SOLUTIONS

COMPANY CERTIFICATE AND DISCLOSURE STATEMENT

Veritext Legal Solutions represents that the foregoing transcript is a true, correct and complete transcript of the colloquies, questions and answers as submitted by the court reporter. Veritext Legal Solutions further represents that the attached exhibits, if any, are true, correct and complete documents as submitted by the court reporter and/or attorneys in relation to this deposition and that the documents were processed in accordance with our litigation support and production standards.

Veritext Legal Solutions is committed to maintaining the confidentiality of client and witness information, in accordance with the regulations promulgated under the Health Insurance Portability and Accountability Act (HIPAA), as amended with respect to protected health information and the Gramm-Leach-Bliley Act, as amended, with respect to Personally Identifiable Information (PII). Physical transcripts and exhibits are managed under strict facility and personnel access controls. Electronic files of documents are stored in encrypted form and are transmitted in an encrypted

fashion to authenticated parties who are permitted to access the material. Our data is hosted in a Tier 4 SSAE 16 certified facility.

Veritext Legal Solutions complies with all federal and State regulations with respect to the provision of court reporting services, and maintains its neutrality and independence regardless of relationship or the financial outcome of any litigation. Veritext requires adherence to the foregoing professional and ethical standards from all of its subcontractors in their independent contractor agreements.

Inquiries about Veritext Legal Solutions' confidentiality and security policies and practices should be directed to Veritext's Client Services Associates indicated on the cover of this document or at www.veritext.com.